

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #12	CCRB Case #: 201702561	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/29/2017 2:55 AM	Location of Incident: White Plains Road and Nereid Avenue	18 Mo. SOL 9/29/2018	Precinct: 47		
Date/Time CV Reported Wed, 03/29/2017 3:23 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/03/2017 11:13 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edward Pellerano	31134	953226	047 PCT
2. Officers			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Fernando Garza	05759	960581	047 PCT
2. SGT Michael Pomerantz	04481	947364	047 PCT
3. POM Michael Barbetto	6815	954519	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Edward Pellerano	Abuse: Police Officer Edward Pellerano threatened § 87(2)(b) with the use of force.	A . Exonerated
B . POM Edward Pellerano	Abuse: Police Officer Edward Pellerano frisked § 87(2)(b)	B . Unsubstantiated
C . POM Edward Pellerano	Abuse: Police Officer Edward Pellerano searched the vehicle in which § 87(2)(b) was an occupant.	C . Substantiated
D . Officers	Abuse: Officers questioned § 87(2)(b)	D . Officer(s) Unidentified
E . Officers	Abuse: Officers searched the vehicle in which § 87(2)(b) was an occupant.	E . Officer(s) Unidentified
F . Officers	Abuse: Officers threatened to arrest § 87(2)(b)	F . Officer(s) Unidentified

Case Summary

On March 29, 2017, § 87(2)(b) filed this complaint with IAB. The complaint was referred to the CCRB and was received on April 3, 2017.

On March 29, 2017, at approximately 2:55 a.m., Police Officer Edward Pellerano and Police Officer Francisco Garza, from the 47th Precinct, stopped § 87(2)(b)'s car for a tinted window at White Plains and Nereid Avenue in the Bronx. PO Pellerano allegedly told § 87(2)(b) "Get out of the car. Get out of the car or I'll tase you" (**Allegation A**). PO Pellerano allegedly frisked § 87(2)(b) (**Allegation B**) and searched his car (**Allegation C**). Additional unidentified officers arrived at the scene and allegedly questioned § 87(2)(b) (**Allegation D**), searched his car (**Allegation E**), and threatened to arrest him (**Allegation F**).

§ 87(2)(b) was issued a summons for § 87(2)(b) and a summons for § 87(2)(b) (**Board Review 01**).

There is no video evidence for this case.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- Results regarding a Notice of Claim are pending (**Board Review 02**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s third CCRB complaint (**Board Review 04**):
 - § 87(2)(b)
- Police Officer Edward Pellerano has been a member of the service for five years and there are no substantiated CCRB allegations against him. § 87(2)(g).

Findings and Recommendations

Allegation A: Abuse of Authority- Police Officer Edward Pellerano threatened § 87(2)(b) with the use of force.

The following facts are undisputed:

When § 87(2)(b) was stopped, he had his windows up and he told officers that he was unable to roll the windows down after being commanded to do so. PO Pellerano approached § 87(2)(b)'s driver side door, opened it, and was positioned in between the door and the door frame. § 87(2)(b) attempted to shut the door of the vehicle while PO Pellerano was in

between the frame and the door. PO Pellerano unholstered his Taser and told § 87(2)(b) to “get out of the vehicle or [he would] tase him.” § 87(2)(b) exited the vehicle. § 87(2)(b) stated that when PO Pellerano opened his vehicle door and while § 87(2)(b) was trying to pull it closed, § 87(2)(b) asked, “Officer, why are you opening my car? Why are you pulling my car door?” PO Pellerano told § 87(2)(b) “Get out of the car. Get out of the car or I’ll tase you.” § 87(2)(b) called 911 and requested a supervisor before exiting his car. The 911 operator told § 87(2)(b) that he needed to call back after the incident ended. § 87(2)(b) then exited his car **(Board Review 05)**.

PO Pellerano stated that he and PO Garza stopped § 87(2)(b)’s car for a tinted window. PO Pellerano stated that he requested § 87(2)(b)’s license and § 87(2)(b) was unable to provide it. When § 87(2)(b) attempted to close the door, it hit PO Pellerano’s left arm. PO Pellerano reacted by removing his Taser from his right side, pointing it towards the ground, and telling told § 87(2)(b) that he had a Taser and instructing him to get out of the car. PO Pellerano did this so as to gain voluntary compliance from § 87(2)(b) **(Board Review 06)**.

PO Garza stated that after § 87(2)(b) attempted to close the door on PO Pellerano and struck PO Pellerano in the process, PO Pellerano removed his taser, pointed it towards the ground and told § 87(2)(b) “I have a taser. Get out of the vehicle.” PO Garza did not recall hearing PO Pellerano specifically tell § 87(2)(b) “Get out of the car or I’ll tase you” **(Board Review 07)**.

According to Patrol Guide Procedure 221-08, a conducted electrical weapon should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. It is prohibited to use a conducted electrical weapon in situations that do not require the use of physical force **(Board Review 12)**.

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Therefore, it is recommended that **Allegation A** be **exonerated**.

Allegation B: Abuse of Authority- Police Officer Edward Pellerano frisked § 87(2)(b)

§ 87(2)(b) stated that he exited his car and walked to the rear after being instructed by PO Pellerano to do so. He wore a gray jacket with two pockets in the stomach area and jeans with two pockets in front and two in the back. He did not have belongings in any of his pockets. § 87(2)(b) stood with his hands on the back of his car and PO Pellerano frisked § 87(2)(b) from head to toe **(Board Review 05)**.

PO Pellerano did not recall frisking § 87(2)(b) and he did not recall seeing any officer doing so. However, he added that he would imagine someone could have frisked § 87(2)(b)’s waistband for safety reasons because people carry weapons in their waistbands.

He did not recall what § 87(2)(b) wore and he did not recall seeing any bulges on § 87(2)(b). Besides § 87(2)(b) slamming the door on his arm and seeing the screwdriver in his vehicle, he did not have any other reason to fear for his safety (**Board Review 06**).

PO Garza, PO Barbetto, and Sgt. Pomerantz denied frisking § 87(2)(b) and they did not recall seeing any other officer doing so (**Board Review 07, 08, and 09**).

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Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C: Abuse of Authority- Police Officer Edward Pellerano searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that after being frisked, PO Pellerano asked for his documentation. § 87(2)(b) told PO Pellerano that the documentation was in his car, but he did not specify where it was. The documentation was in a compartment under the front of the driver seat. There was no follow-up conversation and § 87(2)(b) did not consent to the search of his car. However, PO Pellerano entered his torso into § 87(2)(b)'s car and looked around center console area, the car lights, and then grabbed the documents from the driver side. PO Pellerano did not do anything else in the car (**Board Review 05**).

PO Pellerano initially stated that he did not enter § 87(2)(b)'s car. However, he later stated that when § 87(2)(b) opened his car door, he noticed a screwdriver on the car floor, between the driver seat and the doorframe. After § 87(2)(b) exited the car, PO Pellerano reached into the car, grabbed the screwdriver, and moved it to the backseat of the car so that it would not be accessible to § 87(2)(b) as a potential weapon. PO Pellerano did not do anything else inside the car. PO Pellerano did not mention that a conversation regarding § 87(2)(b)'s documentation took place after § 87(2)(b) was removed from his car (**Board Review 06**).

Sgt. Pomerantz, PO Garza and PO Barbetto denied entering or searching § 87(2)(b)'s car and they denied seeing any officer doing so (**Board Review 07, 08, and 09**).

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People v. Hernandez, 238 A.D.2d 131 states that breaching the plane of a car doorway to peer deeply inside the vehicle for contraband constitutes a search (**Board Review 13**). People v. Galak, 81 N.Y.2d 463 states that an officer needs probable cause to search a vehicle and that there must exist a nexus between the arrest and the probable cause to search (**Board Review 14**). NYPL 265.01 Criminal Possession of a Weapon in the Fourth Degree Defines a set of *per se* weapons and a screwdriver is not included on the list (**Board Review 15**). People v. Carvey, 89 N.Y.2d 707 states that for an officer to be justified in searching a vehicle for a weapon, the weapon must pose an actual and specific threat to the officer's safety (**Board Review 16**).

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Thus, it is recommended that **Allegation C** be closed as **Substantiated**.

Allegation D: Abuse of Authority- Officers questioned § 87(2)(b)

Allegation E: Abuse of Authority- Officers searched the vehicle in which § 87(2)(b)

was an occupant.

Allegation F: Abuse of Authority- Officers threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that approximately four to seven officers arrived within seconds of § 87(2)(b) exiting his car. § 87(2)(b) stated that while PO Pellerano wrote the summonses, two officers, who he could not see or describe, asked him, “Where do you live?” “Where are you going?” “Whose car is this?” “Is this your car?” “Are you on drugs or drinking?” “Do you have any weapons or knives in the car?” “Have you been arrested before?” § 87(2)(b) answered each question. Then, a second set of two officers (described as a Hispanic male, who was taller than 5’7”, and was dressed in uniform and a white male, who was taller than 5’7”, had a square jaw, and wore jeans) searched his car. He did not see in detail what the officers did inside his car. All four car doors were opened but he was not sure who did this. Both officers entered their torsos through all four sides of the car. One of the officers might have looked through garbage, checked under the seats, and opened the arm rests. The other officers also checked through garbage and bags on the car floor and under the seats. The officer asked § 87(2)(b) about the glove compartment because it did not open. § 87(2)(b) told the officers that he did not consent to the search. Following the search, officers said that everything was good. An officer told § 87(2)(b) that they were going to bring him “downtown.” § 87(2)(b) specifically stated that Sgt. Pomerantz and PO Garza were not the subjects of this allegation (**Board Review 05**).

There were three events generated in regards to this incident and they note that only two units acknowledged the calls: response auto 1 (consisting of PO Pellerano and PO Garza) and ST1 (consisting of Sgt. Pomerantz and PO Barbetto) (**Board Review 10**).

PO Pellerano, PO Garza, Sgt. Pomerantz, and PO Barbetto acknowledged that additional officers were present, but none of them recalled who they were (**Board Review 06, 07, 08, and 09**).

PO Garza, PO Barbetto, and Sgt. Pomerantz both stated that they did not and did not see any officer search § 87(2)(b)'s car, question him, or threaten to arrest him (**Board Review 07, Board Review 08, and Board Review 09**).

PO Pellerano did not recall asking questioning § 87(2)(b) or threatening to arrest him, and he did not recall hearing any officer asking doing so. PO Pellerano believed that other officers

entered § 87(2)(b)'s car and stated that he assumed other officers entered the car. However, he was focused on writing the summonses so he did not see what the officers did inside § 87(2)(b)'s car except shine their flashlights. PO Pellerano could not state where each officers was in relation to § 87(2)(b)'s car, but at one point all four doors were open. PO Pellerano added that the car would be searched but he was not sure why **(Board Review 06)**.

The 47th Precinct Tour 1 Roll Call for March 29, 2017 shows that there were 22 white male officers and 16 Hispanic male officers on duty on the night of the incident **(Board Review 11)**.

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_____ it is
recommended that **Allegations D, E, and F** be closed as **officer(s) unidentified**.

Squad: **12**

Investigator:	_____	<u>Raquel Velasquez</u>	_____
	Signature	Print	Date
Squad Leader:	_____	<u>Lily Carayannis</u>	_____
	Title/Signature	Print	Date